

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
	36C25526R0076	☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)	04-30-2026	1 38

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER
			589A6-24-407
7. ISSUED BY	CODE	8. ADDRESS OFFER TO	
Department of Veterans Affairs Network Contracting Office (NCO) 15 3450 S 4th Street Trafficway Leavenworth KS 66048	36C255	Y Network Contracting Office (NCO) 15 3450 S 4th Street Trafficway Leavenworth KS 66048	
9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER (Include area code) (NO COLLECT CALLS)	
	Tim Parison	913-946-1140	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)

Request for Proposal for project 589A6-24-407, Upgrade Building 71 Restrooms for ADA Compliance
Dwight D. Eisenhower, Veterans Administration Medical Center, Leavenworth, Kansas.

See attached Schedule, Statement of Work, Specifications and Drawings.
Period of Performance is 270-days after Notice to Proceed.

Provide Contractor Unique Identifier Number: _____
Contractors working on this project are exempt from state sales tax, and a Project exemption Certificate will be issued upon award of this contract.

Payment and Performance bonds are required.
Magnitude of VA Project: at \$500,000.00 - \$1,000,000.00

Note: The term offer and proposals are interchangeable.
PROPOSALS ARE TO BE SUBMITTED FEDEX, UPS, OR HAND DELIVERED to address below, to ensure receipt of all contents.
The contractor shall also provide the proposal in two separate binders along with a CD of the proposal containing the technical & price information by the request due date at the NCO 15 Contracting Office 3450 S 4th St Leavenworth, Kansas 66048.

The NAICS code and size standard for this project are: NAICS 236220- Commercial and Institutional Building Construction
Contractors with a size standard of \$45.0 million.

Acknowledge VAAR clause 852.219-75 by signing certification blocks of the clause, and return.
with proposal to the Contracting Officer.

Site Visit: A site visit will be conducted on Wednesday 15 May 2026 at 10:00 AM CST. Location: VAMC,
Leavenworth Engineering Office Bldg 21, Leavenworth, Kansas 66048
Questions are due Wednesday 22 May 2026, by 10:00am Central Time.
Proposals are due Monday 05 June 2026 by 2:00pm central time, electronically to the CO and maile to address in blk7.

Facility COR: Patrick Reyes 913-682-2000 x6-2283, email: patrick.reyes@va.gov
Contracting Officer: Tim Parison, 913-946-1140, timothy.parison@va.gov

11. The Contractor shall begin performance within <u>7</u> calendar days and complete it within <u>270</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☐ mandatory ☐ negotiable. (See <u>52.211-10</u>).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES," indicate within how many calendar days after award in Item 12B.) ☒ YES ☐ NO	12b. CALENDAR DAYS

13. ADDITIONAL SOLICITATION REQUIREMENTS:

- Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 2:00pm CST (hour) local time 06-05-2026 (date). If this is a sealed bid solicitation, offers must be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, the date and time offers are due.
- An offer guarantee ☒ is, ☐ is not required.
- All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.
- Offers providing less than _____ calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)
CODE	FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of the solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER
(Type or print)

20b. SIGNATURE

20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA 589-3660162-2944-854200-3220 23NRNR002
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24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY 36C255 Department of Veterans Affairs Network Contracting Office (NCO) 15 3450 S 4th Street Trafficway Leavenworth KS 66048	27. PAYMENT WILL BE MADE BY 36C255 Department of Veterans Affairs Financial Services Center http://www.fsc.va.gov/einvoice.asp Austin TX PHONE: 877-353-9791 FAX: 512-460-5429	

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.		☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.	
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)		31a. NAME OF CONTRACTING OFFICER (Type or print) Arnold Payne Contracting Officer	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. AWARD DATE

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STATEMENT OF PROPOSAL ITEM(S)

CLIN 0001 PROPOSAL ITEM 1 (Base Proposal) - GENERAL CONSTRUCTION:

To provide all material, labor, and equipment to renovate spaces and replace fixtures to meet ADA compliance in the Building 71 restrooms:

Remodel restrooms

Lead paint remediation

Determine if asbestos abatement is required

Asbestos abatement as determined by VA

Period of Performance for all work is 270 days.

\$ _____

**INFORMATION REGARDING BIDDING MATERIAL, BID GUARANTEE
AND BONDS**

INSTRUCTIONS, CONDITIONS AND OTHER STATEMENTS TO BIDDERS/OFFERORS

STATEMENT OF WORK

Upgrade Building 71 Restrooms for ADA Compliance #589A6-24-407

Statement of Work

To provide all material, labor, and equipment to renovate spaces and replace fixtures to meet ADA compliance in the building 71 restrooms:

- Remodel restrooms
- Lead paint remediation
- Determine if asbestos abatement is required
 - Asbestos abatement as determined by VA

Period of Performance for all work is 270 days.

Justification: This project has direct foundational services impact in that it houses staff that provides direct support to the hospital services.

The C&A requirements do not apply, and a Security Accreditation Package is not required

2.1 52.201-1 ACQUISITION 360: VOLUNTARY SURVEY (SEP 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: <https://www.acquisition.gov/360>.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of Clause)

2.2 52.216-1 TYPE OF CONTRACT (NOV 2025) (DEVIATION)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

2.3 52.228-1 BID GUARANTEE (SEP 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds—

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be percent of the bid price or , whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of Provision)

2.4 52.228-17 INDIVIDUAL SURETY—PLEDGE OF ASSETS (BID GUARANTEE) (FEB 2021)

(a) Offerors shall obtain from each person acting as an individual surety on a bid guarantee—

(1) A pledge of assets that meets the eligibility, valuation, and security requirements described in the Federal Acquisition Regulation (FAR) 28.203–1; and

(2) Standard Form 28, Affidavit of Individual Surety.

(b) The Offeror shall include with its offer the information required at paragraph (a) of this provision within the timeframe specified in the provision at FAR 52.228–1, Bid Guarantee, or as otherwise established by the Contracting Officer.

(c) The Contracting Officer may release the security interest on the individual surety's assets in support of a bid guarantee based upon evidence that the offer supported by the individual surety will not result in contract award.

(End of Provision)

2.5 52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this provision—

Backhaul, covered article, covered telecommunications equipment or services, critical technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education;
or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures.*

(1) *Covered telecommunications and video surveillance.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders.*

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations.* By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror’s possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA

order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification.* By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications.*

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds \$15,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure.*

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures.* The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of Provision)

2.6 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025

2.7 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☐ *Services.* In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ *General construction.* In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or

certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) *Special trade construction contractors.* In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of Clause)

FAR
Number

852.239-75

Title

INFORMATION AND COMMUNICATION TECHNOLOGY
ACCESSIBILITY NOTICE

Date

FEB 2023

REPRESENTATIONS AND CERTIFICATIONS

GENERAL CONDITIONS

4.1 52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under NAICS Code 236220 assigned to contract number .

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.]*

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it [] is, [] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

[Contractor to sign and date and insert authorized signer's name and title.

_____]

(End of Clause)

4.2 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) *Workers' compensation and employers liability:* Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) *General Liability:* \$500,000.00 per occurrences.

(c) *Automobile liability:* \$200,000.00 per person; \$500,000.00 per occurrence and \$20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

4.3 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

- (1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

- (1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);
- (2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);
- (3) Telecommunications or video surveillance services provided by such entities or using such equipment; or
- (4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence

or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not

covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangement means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—

- (1) Is developed or provided by a Kaspersky Lab-covered entity;
- (2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
- (3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—

- (1) Kaspersky Lab;
- (2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";
- (3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
- (4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if

OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services

produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity’s possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was

provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

4.4 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/far/index.html>
<http://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.243-4	CHANGES	JUN 2007
52.244-6DEV	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	OCT 2025
52.209-5	CERTIFICATION REGARDING RESPONSIBILITY MATTERS	AUG 2020
52.219-4	NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025

4.5 52.236-27 SITE VISIT (CONSTRUCTION) (FEB 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:

Name: Timothy Parison

Address: Dwight D Eisenhower VAMC

4101 South 4th st Trafficway
BLDG-21 Engineering OFFICE
LEAVENWORTH, KANSAS 66048
Telephone: 913-946-1140

(End of Provision)

4.6 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

PROPOSAL SUBMITTAL INSTRUCTIONS

SOLICITATION: 36C25526R0076

PROJECT: 589A6-26-407 Upgrade Building 71 Restrooms for ADA Compliance:

LOCATION: Department of Veteran Affairs, Dwight D. Eisenhower VAMC, Leavenworth

4101 So. 4th st Trafficway, Leavenworth Kansas

1. PREPARATION AND SUBMITTAL OF PROPOSALS

a. GENERAL INFORMATION.

Selection of an offeror for contract award will be made based on an assessment of each offeror's response to the Request for Proposal (RFP). As a Request for Proposals (RFP) based on Lowest Price Technically Acceptable (LPTA) Source Selection Process, in accordance with Federal Acquisition Regulation (FAR) Part 15.101-2, the VA will make the award based on the lowest evaluated price of proposals meeting or exceeding the acceptability standards for non-cost factors. The four (4) evaluation factors for determination of technical acceptability consist of:

1. Relevant Past Performance of Prime Construction
2. Technical Construction Experience of Prime Contractor
3. Technical Qualifications of Proposed Staffing

4 Prime Contractor Safety Plan

NOTE: Failure to comply with the RFP requirements will raise serious questions regarding an Offeror's technical ability to perform the services and may be grounds to eliminate the proposal from further consideration for contract award.

b. THE OFFER.

The submission of the documentation specified below will constitute the Offeror's acceptance of the terms and conditions of the RFP, including the Plans & Specifications for the construction of this project. These instructions prescribe the format for the proposal and describe the approach for the development and presentation of proposal data. These instructions are designed to ensure the submission of necessary information to provide for the understanding and comprehensive evaluation of proposals.

c. AWARD BASED ON INITIAL OFFERS.

Pursuant to clause 52.215-1 the Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price, and technical qualifications standpoint. The VA reserves the right to conduct discussions if the Contracting Officer later determines such discussions to be necessary.

d. NUMBER OF COPIES TO SUBMIT.

Offerors shall submit a SINGLE PACKAGE **electronically and to the address shown in Block 8** of the Standard Form 1442. The package shall include:

- (a) One (1) Envelope, Marked:

ORIGINAL - RESPONSE TO RFP **36C25526R0076**

PROJECT: 589A6-26-407 Upgrade Building 71 Restrooms for ADA Compliance:

This envelope should contain the signed original copy (1) of the documents listed below; and one electronic copy on a CD. Files must be readable using Microsoft Office 2007, Word, Excel, PowerPoint, PDF, or Access. Scanner resolutions must be set at least 200 dots per inch (dpi) when submitting files in Adobe PDF. If submitting in PDF, please create as Word and then save as PDF (scanning documents greatly increases the memory used). Ensure that attachments are less than 20 Megabytes. When splitting up the attachment, be sure to identify on the email subject line, i.e., **36C25526R0076** /ABC Company/1 of 4. Note: Zip files are not acceptable. It is incumbent upon the offeror to ensure that their proposal is received by the due date and time.

- (a) One (1) file will be marked Technical: RESPONSE TO RFP **36C25526R0076 PROJECT: 589A6-26-407 Upgrade Building 71 Restrooms for ADA Compliance, Leavenworth:**

This submittal is to contain the signed original copy of the documents and the response for the three (3) technical factors listed below.

(b) One (1) file containing the pricing information for each Bid item as indicated on the price schedule. This file should also include the bid schedule and the Calculation of Self-Performed/Subcontracted Work.

2. DOCUMENTS TO SUBMIT.

Submit the proposal response **electronically and by mail** or in person to the address listed in Block 8 of the Standard Form 1442 **containing the technical and price information by the request due date**:

a. STANDARD FORM 1442. Submit the SF 1442 issued under this solicitation, with Blocks 10 (UIE Number) and Blocks 14 through 20 properly filled-out by the Offeror. Include acknowledgment of any and all Amendments that may have been issued, either by: (1) listing them in Block 19 of the SF 1442, or (2) including copies of the Amendment document(s) (Standard Form 30) with Blocks 8 and 15 filled in and signed, or (3) including signed acknowledgement in the form of a separate letter that includes a reference to the solicitation and amendment numbers. NOTE: Failure to acknowledge **all** Amendments issued pursuant to this solicitation may be cause for rejection of your offer.

b. OFFER GUARANTEE (BID BOND). In accordance with solicitation provision 52.228-1, Bid Guarantee, failure to furnish a bid guarantee, in the proper form and amount, by the deadline established for submitting offers, may be cause for rejection of the offer.

c. DOCUMENTATION OF TECHNICAL ACCEPTABILITY. Proposals received in response to this solicitation will be evaluated in accordance with procedures outlined in Federal Acquisition Regulations (FAR) Part 15.101-2 for the Lowest Price Technically Acceptable (LPTA) Offer.

The following significant Evaluation Factors will be used as the basis for determining Technical Acceptability: Relevant Past Performance of Prime Contractor; Technical Construction Experience of Prime Contractor; and Technical Qualifications of Proposed Staffing.

NOTE: There is a realistic possibility that some offerors may choose to submit the same construction project as a qualifying example for both the past performance and the technical experience evaluation factors. This is not prohibited, but the supporting documentation must demonstrate that the submitted projects absolutely do comply with the specific minimal requirements, identified below, for each separate evaluation factor.

PHASE 1: ORIGINAL - RESPONSE TO RFP **36C25526R0076**.

PROJECT: **589A6-26-407 Upgrade Building 71 Restrooms for ADA Compliance, Leavenworth:** - (Company Name). Evaluation Factors Numbers 1 - 4

FACTOR 1: RELEVANT PAST PERFORMANCE OF PRIME CONTRACTOR

To be evaluated to determine if an offeror's past performance is Technically Acceptable, Offerors should identify no less than ONE (1), and no more than THREE (3), previously awarded, and completed construction contracts, which were issued by either: Federal, State, or Local Government Agencies; and/or Private Organizations. To be evaluated as Relevant Past Performance, the construction contracts submitted by offerors must involve:

- A. Has performed as a General/Prime contractor on a Upgrade Restrooms to ADA Compliance project where the structure project was equal to, or greater than **\$500,000.00 to \$1,000,000.00.**
- B. Work that was 100% completed within a period of no more than Four (4) years prior to the date of submitting this proposal. If the contract/work is incomplete or was completed more than five years prior to the date of submitting this proposal, it will not be deemed relevant and not considered.
- C. Relevant past performance must have been satisfactory or better.

For each of the submitted Relevant Past Performance contracts, provide the following information.

- (1) The name of the construction contract, and the contract ID number.
- (2) The name of the contracting agency or organization the contract was awarded by.
- (3) The date of the construction contract award and the contract award amount in dollars.
- (4) The date of the construction contract completion, and the final contract amount, in dollars.
- (5) A brief description of the construction contract scope of work; and
- (6) Identification of at least one point-of-contact at the organization that awarded the submitted contract, including: the name of the point-of-contact; their current mailing address; phone number; and email address (if applicable).

Factor 1 SPECIAL NOTE 1 for Offerors That May Lack Past Performance

Information: *In accordance with FAR Part 15.305(a) (2), in the case of an offeror that is without a record of relevant past performance, or for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance. Such offerors may submit relevant past performance information regarding: predecessor companies; key personnel who have relevant experience; or subcontractors that will be performing major or critical aspects of this requirement; provided that such information is relevant to the construction in this solicitation.*

Factor 1 SPECIAL: NOTE 2 for Offerors that have Past Performance: *Offerors may provide information on problems encountered on the identified contracts and the offeror's corrective actions. The government also reserves the right to consider past performance information from all available sources, in addition to any information submitted by offerors.*

FACTOR 2: TECHNICAL CONSTRUCTION EXPERIENCE OF PRIME CONTRACTOR.

To be Technically Acceptable, offerors must provide evidence that they have the technical qualifications and experience needed to meet the technical performance requirements of this project. Offerors must submit no less than TWO (2) examples of their successful technical construction experience with projects that involved technical requirements similar to the requirements of this project that involved construction Cooling Towers Replacement. The construction project submitted must involve:

- A. Work as a prime or subcontractor under the same NAICS code as this solicitation, which is 236220, Commercial and Institutional Building Construction; that involved construction of **Upgrade Building 71 Restrooms for ADA Compliance** of a dollar magnitude equal to, or greater than **\$500,000.00 to \$1,000,000.00**.
- B. If offering subcontracted work as proof of technical construction experience, offerors must submit evidence that supports the magnitude of the work they performed as a subcontractor.
- C. General construction. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in 852.219-73 or VOSBs as set forth in 852.219-74. Any work that a similarly situated VIP-listed subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.
- D. Work that was of a similar nature to the scope of work for this project. This is defined as work performed at a Patient Care Facility or property of an active and occupied Hospital or Medical Facility. If an offeror chooses to submit experience that was not conducted at Patient Care Area of a Hospital or Medical Facility, they must explain how the nature and complexity of the work conducted involved technical construction requirements equivalent to that described in the Plans & Specifications of this solicitation.

For each of the Technical Construction Experience projects submitted, provide the following information:

- (1) The name and location of the Construction project.
- (2) The performance period, including the starting and completion dates.
- (3) The total cost of the project in dollars.
- (4) The percentage of total labor self-performed by the offeror's employees.
- (5) A brief description of the construction project scope of work, which explains how the project involved work as a prime contractor or subcontractor under NAICS Code 236220, Commercial and Institutional Building Construction work that was technically like the project work under this Solicitation.

FACTOR 3: TECHNICAL QUALIFICATIONS OF PROPOSED STAFFING.

To be Technically Acceptable, qualified offerors must submit a detailed resume of each key individual. This will be evaluated to determine if they have the appropriate technical training and or previous construction experience to meet the technical requirements of a project of this nature. No one individual can perform more than two of the staffing positions below:

- (A) Project Manager – Must have a minimum of 5 years of experience as a project manager must provide a minimum of 3 projects with similar scope of this project. Provide the name of the construction contract, and the contract ID number; The name of the contracting agency or organization the contract was awarded by; The date of the construction contract award and the contract award amount in dollars; The date of the construction contract completion, and the final contract amount, in dollars; A brief description of the construction contract scope of work; Identification of at least one point-of-contact at the organization that awarded the submitted contract, including: the name of the point-of-contact; their current mailing address; phone number; and email address (if applicable).
- (B) Quality Control Manager –Provide a minimum of 3 projects with similar scope of this project that they have acted as the QC manager. Provide the name of the construction contract, and the contract ID number; The name of the contracting agency or organization the contract was awarded by; and The date of the construction contract award. A brief description of the construction contract scope of work and the QC program that was implemented.; Identify at least one point-of-contact at the organization that awarded the submitted contract, including: the name of the point-of-contact; their current mailing address; phone number; and email address (if applicable).
- (C) Safety Officer – Must provide a list of safety training at a minimum; life safety, excavation safety, scaffold safety, OSHA 30, fall protection training, crane/rigging safety with a minimum of 5 years of experience as a safety officer. Provide a minimum of 3 projects with similar scope of this project. Provide the name of the construction contract, and the contract ID number; The name of the contracting agency or organization the contract was awarded by; Provide a brief description of the construction contract scope of work and how the safety program was implemented; Identify at least one point-of-contact at the organization that awarded the submitted contract, including: the name of the point-of-contact; their current mailing address; phone number; and email address (if applicable).
- (D) Site Superintendent – Must have minimum of 5 years of experience as a site superintendent and must have OSHA 30 training. Provide at least 3 projects as a site superintendent with similar scope of this project. Provide the name of the construction contract, and the contract ID number; The name of the contracting agency or organization the contract was awarded by; The date of the construction contract award and the contract award amount in dollars; The date of the construction contract completion, and the final contract amount, in dollars; A brief description of the construction contract scope of work; and Identification of at least one point-of-contact at the organization that awarded the submitted contract, including: the name of the point-of-contact; their current mailing address; phone number; and email address (if applicable).

FACTOR 4: PRIME CONTRACTOR SAFETY PLAN

Offerors must provide a construction safety plan:

Offerors must provide a Safety Plan.

1. The contractor's Safety Plan shall be evaluated for their compliance with local/State/Federal rules and regulations, ASME A17, and the company's consideration of safety of its employees and the public. The contractor's Safety Plan at the minimum shall address their safety policy, commitment to safety, detailed disciplinary action to be taken with respect to employees violating safety requirements, personnel safety responsibilities, personnel safety training, personal protective equipment, accident / incident reporting procedure and investigations, emergency procedures guidelines.

2. The contractor's Safety Plan shall address their plan for completing all contract work on and around an active hospital without impacting patient care and completing all work in accordance with all construction documents and all local/State/Federal rules and regulations, and ASME A17.

3. Project Construction Plan: Project work is located outside of -, at VA Medical Center Leavenworth. Provide the approach of how you will plan to replace and structures or utilities and other infrastructure during construction. Keep in mind the ongoing and continuing operation of the medical center and the requirement to always have Network Infrastructure Upgrade and Server Room operational. The plan should include but not limited to the following:

- Impact to surrounding medical center services
- Material delivery
- Debris removal
- Worker entry

PROJECT SPECIFIC INFORMATION

PROJECT SPECIFIC INFORMATION

PROJECT TITLE AND NO: 589A6-26-407 Upgrade Building 71 Restrooms for ADA Compliance:

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PROJECT LOCATION: Department of Veteran Affairs, 4101 So 4th St Trafficway, Leavenworth, Kansas 66048

MAGNITUDE OF PROJECT: Between \$500,000.00 and \$1,000,000.00 (**VAAR 836.204**)

TYPE CONSTRUCTION:

- NAICS: 236220, Commercial and Institutional Building Construction
- Small Business Size: \$45.0 Million

PERFORMANCE PERIOD: The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use no later than the respective time reflected below. The time stated for completion shall include final cleanup of the premises.

CLIN 0001 (Base Bid)- 270-Calendar Days

SITE VISIT: A site visit will be conducted on: **Friday 15 May 2026 at 10:00 AM CST.**

Location: Dwight D. Eisenhower, VA Medical Center is located at 4101 So. 4th St Trafficway, Engineering Office BLDG-21, Leavenworth, Kansas 66048.

RFI(s): All request for information (Questions) in response to this solicitation are due **Friday 22 May 2026 at 10:00 AM CST.**

BID GUARANTEE

A bid guarantee is required in an amount not less than 20 percent of the bid price but shall not exceed \$3,000,000. Failure to furnish a photocopy of the original bid guarantee in the proper form and amount, by the time set for opening of bids, will require rejection of the bid in all cases except those listed in FAR 28.101-4, and may be cause for rejection even then. Bidders shall provide an original bid guarantee within two business days after notification by the Contracting Office.

PERFORMANCE & PAYMENT BONDS: In accordance with FAR 28.102-1 and Contract Clause 52.228-15, Contractors are reminded that any amount awarded over \$30,000 shall require Payment Protection (Bonds) (See Clause 52.228-13), and awards exceeding \$150,000 shall require both Payment and Performance Bonds. All bonds are due no later than 10 days after award.

AFFIRMATIVE ACTION GOALS AND GEOGRAPHICAL AREA (reference 52.222-23):

Goals for Minority Participation for each trade: 9%

Goal for Female Participation for each trade: 6.9%

The Geographical covered area for this solicitation (project) is Leavenworth, KS

LIQUIDATED DAMAGES: (☐) YES or (☒) NO (reference Contract Clause 52.211-12)

Amount Per Day: _____ NA _____

WARRANTY OF CONSTRUCTION FOR GUARANTEE PERIOD SERVICES: (☐) YES or (X) NO
(reference VAAR 852.246-75).

RESTRICTION ON SUBMISSION AND USE OF EQUAL PRODUCTS: (☐) YES or (X) NO
(reference VAAR 852.236-90)

METRIC PRODUCTS: Products manufactured to metric dimensions will be considered on an equal basis to those manufactured using inch/pound units, providing they fall within the tolerances specified using conversion tables contained in the latest revision of Federal Standard No. 376B, and all other requirements of this document are met. If a product is manufactured to metric dimensions and those dimensions exceed the tolerances specified in the inch/pound units, a request should be made to the contracting officer to determine if the product is acceptable. The contracting officer, in concert with the Contracting Officer's Representative, will accept or reject the product, (reference VA Handbook 0100, Metrics).

WAGE DETERMINATION APPLICABLE TO THIS PROJECT:

General Decision Number: KS20260053 01/02/2026 0053

PROPOSAL DUE DATE: Friday June 05, 2026 at 2:00 PM CST.

PROPOSAL SUBMITTAL CONTENTS SHALL INCLUDE:

- Signed copy of the SF1442 (front and back) with amendments
- Volume 1 Technical Proposal
- Volume 2 Price Proposal
- Cost Summary Sheet
- 52.209-5 REPRESENTATION BY CORPORATIONS REGARDING AN UNPAID TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (DEVIATION) (MARCH 2012)
- Calculation Worksheet for Self-Performed and Subcontracted Work
- Contractor Certification Regarding Safety and Environmental
- Bid Bond (Photocopy)
- Any other information is called out by this request for proposal documents.

BASIS FOR AWARD: Lowest Price Technically Acceptable.

<u>FAR</u> <u>Number</u>	<u>Title</u>	<u>Date</u>
852.215-70	SERVICE-DISABLED VETERAN-OWNED AND VETERAN-OWNED SMALL BUSINESS EVALUATION FACTORS (DEVIATION)	JAN 2023
<u>FAR</u> <u>Number</u>	<u>Title</u>	<u>Date</u>
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899 (DEVIATION) (APR 2025)	APR 2025
852.228-70	BOND PREMIUM ADJUSTMENT	JAN 2008
852.246-71	REJECTED GOODS	OCT 2018

General Decision Number: KS20250053 09/05/2025

Superseded General Decision Number: KS20240053

State: Kansas

Construction Type: Building

County: Leavenworth County in Kansas.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658.

Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022: the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the

| contract in 2025. |

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| If the contract was awarded on | Executive Order 13658 |

| or between January 1, 2015 and | generally applies to the |

| January 29, 2022, and the | contract. |

| contract is not renewed or |. The contractor must pay all |

| extended on or after January | covered workers at least |

| 30, 2022: | \$13.30 per hour (or the |

| applicable wage rate listed |

| on this wage determination, |

| if it is higher) for all |

| hours spent performing on |

| that contract in 2025. |

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The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at <http://www.dol.gov/whd/govcontracts>.

Modification Number Publication Date

0 01/03/2025

1 02/07/2025

2	03/14/2025
3	04/04/2025
4	05/16/2025
5	05/23/2025
6	06/20/2025
7	09/05/2025

ASBE0027-005 10/07/2024

	Rates	Fringes
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ASBESTOS WORKER/HEAT & FROST

INSULATOR (MECHANICAL (Duct,

Pipe & Mechanical System

Insulation)).....	\$ 43.60	33.52
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* BRKS0015-011 06/01/2025

	Rates	Fringes
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TILE SETTER.....	\$ 42.73	18.39
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* BRKS0015-012 04/01/2025

	Rates	Fringes
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BRICKLAYER.....	\$ 43.57	23.02
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* BRKS0015-014 06/01/2025

	Rates	Fringes
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TILE FINISHER.....	\$ 20.74	1.46
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CARP0315-003 05/01/2023

	Rates	Fringes
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CARPENTER (Acoustical Ceiling

Installation Only).....	\$ 43.28	21.25
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CARP0315-004 05/01/2024

	Rates	Fringes
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CARPENTER (Excludes

Acoustical Ceiling

Installation, Drywall Hanging

and Floor Laying Carpet).....	\$ 44.63	22.40
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CARP1181-001 05/01/2023

	Rates	Fringes
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CARPENTER (Floor

Laying-Carpet Only).....	\$ 40.94	21.25
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ELEC0124-011 08/26/2024

	Rates	Fringes
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ELECTRICIAN (Excludes Low

Voltage Wiring).....	\$ 51.01	26.25
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ELEV0012-004 01/01/2025

	Rates	Fringes
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ELEVATOR MECHANIC.....	\$ 60.69	38.435+a+b
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a. VACATION PAY: 6% for 6 months to 5 years service; 8% with 5 or more years of service.

b. PAID HOLIDAYS: New Year's Day, Memorial Day, Independence Day, Labor Day, Veterans Day, Thanksgiving Day and Friday after, and Christmas Day.

ENGI0101-043 04/01/2025

	Rates	Fringes
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POWER EQUIPMENT OPERATOR:

Crane.....	\$ 47.29	22.42
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Forklift.....	\$ 44.14	22.42
Grader/Blade.....	\$ 45.48	22.42
Oiler.....	\$ 39.93	22.42
Paver (Asphalt, Aggregate, and Concrete).....	\$ 45.48	22.42

IRON0010-032 04/01/2025

	Rates	Fringes
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IRONWORKER (Ornamental, Reinforcing and Structural).....	\$ 39.00	34.25
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LABO1290-011 04/01/2019

	Rates	Fringes
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Laborers: (Asphalt, Includes Raker, Shoveler, Spreader and Distributor).....	\$ 31.99	16.03
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LABO1290-015 04/01/2023

	Rates	Fringes
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LABORER (Mason Tender - Brick)...	\$ 31.25	18.25
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PAIN0558-006 04/01/2025

	Rates	Fringes
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GLAZIER.....	\$ 39.32	22.34
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* PAIN2012-009 04/01/2025

	Rates	Fringes
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PAINTER (Spray).....	\$ 36.18	19.97
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* PAIN2012-010 04/01/2025

	Rates	Fringes
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PAINTER (Drywall

Finishing/Taping).....	\$ 36.18	19.97
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PLAS0518-017 04/01/2025

	Rates	Fringes
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PLASTERER.....	\$ 37.92	18.83
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PLUM0008-020 06/01/2023

	Rates	Fringes
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PLUMBER.....\$ 54.28 23.79

PLUM0533-013 06/01/2024

Rates Fringes

PIPEFITTER (Including HVAC

Pipe, Unit, and Installation

of HVAC

Electrical/Temperature

Controls).....\$ 55.56 25.80

ROOF0020-021 06/01/2024

Rates Fringes

ROOFER.....\$ 38.45 22.29

SFKS0314-002 10/01/2021

Rates Fringes

SPRINKLER FITTER (Fire

Sprinklers).....\$ 40.74 22.15

SHEE0002-011 07/01/2024

Rates Fringes

SHEET METAL WORKER (HVAC Duct

Installation Only).....\$ 52.18 27.15

TEAM0541-010 04/01/2025

	Rates	Fringes
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TRUCK DRIVER (Lowboy Truck).....	\$ 39.89	15.85
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TEAM0541-011 04/01/2025

	Rates	Fringes
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TRUCK DRIVER (Semi-Trailer

Truck).....\$ 39.89 15.85

* SUKS2015-022 07/08/2015

	Rates	Fringes
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CARPENTER (Drywall Hanging

Only).....\$ 30.00 1.62

CEMENT MASON/CONCRETE FINISHER...	\$ 25.93	11.62
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ELECTRICIAN (Low Voltage

Wiring Only).....\$ 32.91 18.15

LABORER: Common or General.....\$ 25.49 12.95

LABORER: Concrete Saw (Hand
Held/Walk Behind).....\$ 28.44 11.60

LABORER: Landscape.....\$ 12.48 ** 0.00

LABORER: Mason Tender -
Cement/Concrete.....\$ 17.86 1.01

OPERATOR:
Backhoe/Excavator/Trackhoe.....\$ 33.85 13.87

OPERATOR: Bobcat/Skid
Steer/Skid Loader.....\$ 33.53 13.66

OPERATOR: Bulldozer.....\$ 33.12 13.96

OPERATOR: Loader.....\$ 30.35 12.04

OPERATOR: Roller.....\$ 32.18 13.49

PAINTER (Brush and Roller).....\$ 23.69 9.39

SHEET METAL WORKER, Excludes
HVAC Duct Installation.....\$ 38.39 17.73

TRUCK DRIVER: Dump (All Types)...\$ 28.58 11.22

WELDERS - Receive rate prescribed for craft performing
operation to which welding is incidental.

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** Workers in this classification may be entitled to a higher
minimum wage under Executive Order 14026 (\$17.75) or 13658
(\$13.30). Please see the Note at the top of the wage
determination for more information. Please also note that the
minimum wage requirements of Executive Order 14026 are not
currently being enforced as to any contract or subcontract to
which the states of Texas, Louisiana, or Mississippi, including
their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave
for Federal Contractors applies to all contracts subject to the
Davis-Bacon Act for which the contract is awarded (and any
solicitation was issued) on or after January 1, 2017. If this
contract is covered by the EO, the contractor must provide
employees with 1 hour of paid sick leave for every 30 hours
they work, up to 56 hours of paid sick leave each year.
Employees must be permitted to use paid sick leave for their
own illness, injury or other health-related needs, including
preventive care; to assist a family member (or person who is
like family to the employee) who is ill, injured, or has other

health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at <https://www.dol.gov/agencies/whd/government-contracts>.

Unlisted classifications needed for work not included within the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than

""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example:

PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE:

UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio.

The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The "SA" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the "SA" identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

- a) a survey underlying a wage determination
- b) an existing published wage determination
- c) an initial WHD letter setting forth a position on a wage determination matter
- d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via

email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"

FINAL SPECS PG 01-346 VOL I.

FINAL SPECS PAG 01-213 VOL II.

FINAL DRAWING PG 01-04.